

Kartar Singh v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2011 · Writ-C No. 54702 of 2011 · **Writ disposed; 50% deposit then departmental hearing on recovery**

HEADNOTE

Kartar Singh challenged a recovery certificate as issued without the hearing under Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005. The Court treated the matter as a Section 135 theft proceeding and, disposing of the writ at admission, directed deposit of 50% of the recovered amount within a month as a condition to object; the authority was then to hear and pass a reasoned order within a further month, with coercive steps stayed until a week after that order if the deposit was made.

FACTUAL SUMMARY

Kartar Singh approached the Allahabad High Court against a recovery certificate issued without any opportunity of hearing, which he said Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005 required. The Division Bench was told that the recovery arose from theft-of-electricity proceedings under Section 135 of the Electricity Act, 2003. The writ was heard and disposed of at the admission stage.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1(b)(iii)

hearing on recovery in a Section 135 theft proceeding

HOLDING

Without deciding whether recovery without a Clause 8.1(b)(iii) hearing was illegal, the Court directed the consumer in a Section 135 theft recovery to deposit 50% within one month, then file an objection which the authority must hear and decide by reasoned order within a further month, with coercive steps stayed until a week after that order if the deposit is made. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Kartar Singh challenged a recovery certificate as issued without the hearing under Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005.. ¶ 1

opportunity-before-final-assessment Kartar Singh challenged a recovery certificate as issued without the hearing under Clause 8.1(b)(iii) of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1(B)(III) REQUIRED A HEARING BEFORE THE RECOVERY CERTIFICATE, AND WHETHER THAT CLAUSE APPLIES TO A SECTION 135 THEFT PROCEEDING

The Court noted the proceeding was under Section 135 and sent the consumer to a departmental objection on 50% deposit, without construing 8.1(b)(iii) or the 126/135 divide. ¶ 1